

application for relief must be made *no more than six months after entry of the judgment, dismissal, order, or other proceeding* from which relief is sought and must be accompanied by an affidavit of fault attesting to the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code of Civ. Proc., § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143).

### **III. ANALYSIS**

Here, the Plaintiff seeks to set aside the dismissal that was issued by the Honorable Shella Deen on September 25, 2025. This motion to set aside was filed less than two-months after the dismissal was Ordered. Thus, the Court finds the motion to be timely filed.

Plaintiff Bank seeks to set aside the Order due to the mistake of the plaintiff's attorney. Plaintiff's counsel asserts that due to a clerical error, the matter was not properly calendared, thus causing the plaintiff to fail to properly appear and file a default judgment packet in a timely fashion. (Declaration of Kayvon, ¶ 3). Counsel states that the coversheet with the judgment and order for the judgment on the pleadings were not included. The documents were filed on June 3, 2025. Plaintiff's counsel did not review the rejection email and thus failed to take note of the subsequent hearing. (*Id.*). Plaintiff's counsel requests the dismissal to be set aside so the case can be litigated on its merit and that the Plaintiff not be harmed due to the error of its attorney. (*Id.*, ¶ 4).

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court finds that the plaintiff has met its burden of showing why the dismissal without prejudice ordered by Judge Deen on September 25, 2025 should be set aside pursuant to Code of Civil Procedure section 473(b).

### **IV. CONCLUSION**

Based on the foregoing, the Plaintiff's unopposed motion to set aside is GRANTED. It is ORDERED that the September 25, 2025 court order dismissing the case without prejudice for plaintiff's failure to appear is hereby set aside. The Court will prepare the final Order.

#### **Calendar Line # 7**

**Case Name** CSAA Automobile Insurance Co. vs Sergio Palacios et al

**Case No.** 25CV457892

#### **Motion for Terminating Sanctions**

##### **I. BACKGROUND**

The underlying uninsured motorist claim arises from a December 5, 2022 motor vehicle incident. Claimants Fernando Solano, Sergio Palacios, Epiphania Palacios, and Maria Arias filed an uninsured motorist claim against Respondent CSAA Automobile Insurance Co. ("CSAA"). A petition to designate this matter as an uninsured motorist claim was filed on February 4, 2025.

Before the Court is respondent CSAA's motion for terminating sanctions against Claimant Fernando Solano. CSAA filed the motion on May 5, 2026, and the motion was accompanied by a proof of service indicating mail service for that same day.

The Court has carefully reviewed the moving papers, including CSAA’s notice of motion, memorandum of points and authorities, Declaration of Rhiannon Hayward in support of the motion and attached Exhibits 1-4 (totaling 40 pages), proof of service, and the pleadings.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 17, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

## **II. LEGAL STANDARD**

Pursuant to Code of Civil Procedure section 2023.030, subdivisions (a) through (e), the court is authorized, after notice and an opportunity for hearing, to impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: monetary sanctions, issue sanctions, evidence sanctions, terminating sanctions, and contempt. Code of Civil Procedure, section 2023.010, subdivision (g) provide that a misuse of the discovery process includes evasive responses to discovery. (Code Civ. Proc. § 2023.010(f)). “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion [to deem admitted the truth of the matters specified in the requests for admission].” (Code Civ. Proc., § 2033.280, subd. (c)).

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. [Citation.]” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; *J.W. v. Watchtower Bible and Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169). If a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Doppes, supra*, 174 Cal.App.4th at p. 992). “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed what is required to protect the interests of the party entitled to but denied discovery.’” (*Id.*).

“But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280); *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 702, quoting *Doppes* and *Mileikowsky*). The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

Pursuant to Code of Civil Procedure section 2023.010, “the court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civ. Proc. §§ 2023.010 and 2031.300).

## **III. ANALYSIS**

Here, CSAA asserts that Claimant Fernando Solano has engaged in clear and continuous misuse of discovery that is demonstrated by his willful failure to comply with a Court Order regarding CSAA’s motion to compel deposition of the Claimant that was filed on July 28, 2025 and heard on December 16, 2025 in front of the Honorable Shella Deen. (Motion, p. 4). Despite Judge Deen’s Order was filed on January 21, 2026, and granted CSAA’s motion to compel deposition of the Claimant Fernando Solano and ordered Fernando Solano to make himself available for deposition within 30 days of the Order. No motion for sanctions was imposed with the motion to compel.

CSAA asserts that since the order, Claimant Fernando Solano failed to appear for deposition. CSAA asserts that it submitted its Third Amended Notice of Deposition on April 27, 2026 for Claimant Solano. No opposition or further communications were relayed to CSAA. On April 27, 2026, CSAA obtained a Certification of Non-Appearance. (Declaration of Hayward ¶ 7-8; Exhibits 3-4). CSAA asserts that the claimant has failed to “participate” in discovery. (*Id.*, at p. 5). CSAA avers to the fact that the claimant’s counsel withdrew as the attorney of record after “losing all contact with him” [the claimant]. (*Id.*; Declaration of Hayward ¶ 3). CSAA notes that the claimant’s actions are indicative of abandonment of his claim and seeks a terminating sanction. (*Id.*). CSAA argues that it has suffered prejudice as it has been deprived from obtaining essential testimony necessary to evaluate and defend against the uninsured motorist claim. (*Id.*; Declaration of Hayward ¶ 10).

The Court notes that Claimant Fernando Solano appears to have violated the December 16, 2025 court order compelling his deposition within 30 days. However, the court balances the fact that discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. [Citation.]” (*Doppes, supra*, 174 Cal.App.4th at 992; *J.W., supra*, 29 Cal.App.5th at 1169). If a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Id.*, at p. 992). “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed what is required to protect the interests of the party entitled to but denied discovery.’” (*Id.*). The motion to compel was granted, but the order did not include monetary sanctions against Claimant Solano. Further, while CSAA cites that Fernando Solano has failed to participate in discovery and filed a motion to compel deposition, there has been no discussion or motion to compel written discovery. The Court finds the request for a dismissal and terminating sanction at this juncture to be premature as less severe sanctions can be imposed to produce compliance.

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court finds that CSAA’s request to be premature and the Court will impose less drastic sanctions at this juncture. However, the claimant Fernando Solano is admonished that continuous failure to comply with court orders and sanctions, as well as discovery may result in the Court considering imposition of terminating sanctions in the future.

#### **IV. CONCLUSION**

Based on the foregoing, the unopposed motion for terminating sanctions is DENIED without prejudice at this time. The lesser sanction the Court will impose is monetary sanctions in the amount of \$500.00 for attorney’s fees and cost for pursuing this motion. Claimant Fernando Solano is ORDERED to pay \$600.00 to CSAA within thirty (30) days of this Order.

Claimant Fernando Solano is ORDERED to comply with the December 16, 2025 Order by Judge Deen to make himself available for deposition within thirty (30) days of this Order, or at a mutually agreed date, at a code compliant location.

The Court will prepare the formal Order.